

Jewel Bespoke Build Ltd

Bid Package Terms and Conditions

Key terms applying to all tender invitations

These terms accompany every bid package issued by Jewel Bespoke Build Ltd ("Jewel"). By submitting a bid, the Sub-Contractor confirms that its price and programme are based on them. They summarise the principal conditions on which any resulting Works Order will be placed; the full Order Conditions issued with the Order take precedence over this summary.

1. Basis of the bid

- 1.1 Prices submitted are fixed and not subject to fluctuation or escalation of any kind. They are exclusive of VAT and inclusive of all disbursements.
- 1.2 The bidder is responsible for confirming that quantities and measures are correct. Any additional cost must be identified at the point of placing the Order for approval by Jewel; Jewel will not be responsible for mispricing once an Order has been placed at agreed costs, and any such cost is for the Sub-Contractor's account.
- 1.3 If the bid is accepted, the works will be placed under a Jewel Works Order incorporating Jewel's full Order Conditions. Jewel contracts only on that basis and the conditions may be varied only by written agreement.

2. Programme and time

- 2.1 The Sub-Contractor shall deliver and perform to the dates in the bid package programme or as stated in the Order. Time is of the essence. Jewel will grant a fair and reasonable extension where the Sub-Contractor is delayed by an act of prevention by Jewel, including an instruction to vary the works.
- 2.2 The Sub-Contractor must notify Jewel immediately if it becomes apparent that any date may not be met, for any reason.
- 2.3 Liquidated damages of 5% of the total Order value are payable to Jewel for each week, or part week, that delivery is late without Jewel's prior written consent.

3. Payment

- 3.1 Invoices are paid on the terms stated in the Works Order. Payment for partial shipments is made only where the Order provides for it, and the Order may make the passing of tests or inspections, or the supply of documentation, a condition of payment.
- 3.2 A 5% retention is held on all site work for 3 months. Retention is released on completion of the snagging list and Client agreement.
- 3.3 Where the Employer or Client is insolvent on or before the final date for payment, Jewel is not obliged to pay the Sub-Contractor except to the extent that Jewel receives payment (Section 113(1), Housing Grants, Construction and Regeneration Act 1996, as amended).
- 3.4 Jewel may, at its sole discretion, pay early for goods that are ready for delivery, set apart and clearly marked as Jewel's property, and for which title is shown to vest in the Sub-Contractor. Such goods remain at the Sub-Contractor's risk until delivery.

4. Variations

- 4.1 Jewel may instruct variations to the design, quality or quantity of the works. All variation instructions must be in writing; the Sub-Contractor shall make no variation otherwise.
- 4.2 Variations are valued at the rates and prices in the Order or at analogous rates; by quotation with sufficient detail to ascertain the revised price; or by daywork on the declared basis, recorded by voucher and submitted by the weekend of the week in which the work was carried out.
- 4.3 Valuations must be submitted within a reasonable period and in any event no later than three weeks after the varied works have commenced.

5. Drawings, samples and information

- 5.1 Full detailed drawings are to be provided for Jewel's sign-off before any works start. Samples of all products are to be approved by Jewel before manufacture; approved samples must be installed and no deviation is accepted without Jewel's written approval.
- 5.2 No material change may be made to designs or specifications once settled or approved, without Jewel's written consent.
- 5.3 Operation and maintenance manuals, as-built drawings and guarantees are due no later than two weeks after final installation and before the final invoice (excluding retention) is paid.
- 5.4 Jewel is granted an irrevocable, royalty-free licence to use the Sub-Contractor's drawings and information in connection with the project, and the Sub-Contractor warrants that this will not infringe third-party rights.

6. Delivery and free-issue items

- 6.1 Goods are to be delivered to the destination stated in the Order, securely packed and labelled at the Sub-Contractor's cost. Unless the Order states otherwise, Jewel is not responsible for delivery charges or the return of packaging.
- 6.2 Goods supplied from outside the United Kingdom are delivered CIF to the Order address at the Sub-Contractor's expense unless a different Incoterm is stated; the Order takes priority over Incoterms where they conflict.

- 6.3 The Sub-Contractor is responsible for all Jewel free-issued items from their initial delivery through to final installation and sign-off by Jewel. Replacement of defective or damaged items is at the Sub-Contractor's cost.

7. Quality, inspection and warranty

- 7.1 Jewel and its authorised representatives may inspect the works at any reasonable time at any workshop or place where they are being prepared, assembled or stored, and may request a detailed programme to set factory inspection dates before payments are made.
- 7.2 The Sub-Contractor shall carry out its own quality inspection and confirm any defects or damage in writing 10 working days before delivery and installation. Jewel's final inspection and sign-off on installation is required before final payment.
- 7.3 The Sub-Contractor warrants that the works will comply with the Order specification and any accepted samples, with all statutory and local authority requirements, and with relevant British Standards and good building practice; will be fit for the purpose made known to the Sub-Contractor; will contain no materials identified as potentially hazardous in the Ove Arup publication "Good Practice in Selection of Construction Materials"; and will be carried out with the reasonable skill, care and diligence of a competent professional.

8. Insurance

- 8.1 Evidence of adequate insurance is to be provided before works start, covering public liability, employers' liability and, where appropriate, product liability.
- 8.2 Where the Sub-Contractor carries design responsibility, professional indemnity insurance of not less than £5,000,000 on an each-and-every-claim basis must be held and maintained for the duration of the contract, on wording no less extensive than the relevant JCT 2016 form of Collateral Warranty.

9. Liability and title

- 9.1 The Sub-Contractor is fully liable to Jewel for any loss, damage, expense or liability arising from breach of the Order or from the negligence, omission, default or breach of statutory duty of the Sub-Contractor or anyone engaged by it at any tier, including any liability Jewel incurs to the Client as a result.
- 9.2 Title in goods passes to Jewel on delivery or on payment, whichever is earlier, without prejudice to Jewel's right of rejection.

10. Sub-letting, assignment and confidentiality

- 10.1 No part of the works may be sub-let without Jewel's prior written consent, and sub-letting does not relieve the Sub-Contractor of any obligation. The Sub-Contractor may not assign, charge or transfer the benefit of the Order.
- 10.2 The Sub-Contractor shall not disclose any information relating to the works or the project to any third party without Jewel's prior written approval, save as required by law or as reasonably necessary to perform the works.

11. Health, safety and compliance

- 11.1 The Sub-Contractor shall comply with its obligations under the Construction (Design and Management) Regulations in force, and with all relevant statutory requirements, to the extent they apply to the works.

12. Cancellation and termination

- 12.1 Jewel may cancel an Order at any time by written notice, paying the costs and expenses properly and reasonably incurred up to the date of cancellation, unless the cancellation results from the Sub-Contractor's default.
- 12.2 Jewel may terminate the Sub-Contractor's employment by written notice at any time. The Sub-Contractor must vacate site within seven days of receipt, leaving the works safe, protected and in a proper state for a third party to complete, and will be paid its reasonable costs and accrued profit on work correctly installed and materials retained on site, with no allowance for loss of profit on the reduced contract value.
- 12.3 Either party may terminate immediately for a material breach that is incapable of remedy or is not remedied within 30 days of written notice, for persistent breach, or on the other party's insolvency.

13. Disputes and governing law

- 13.1 Either party may refer a dispute to adjudication under the Scheme for Construction Contracts. If an adjudicator is not agreed within seven days of notice, one will be nominated by the President of the Royal Institution of Chartered Surveyors.
- 13.2 These terms and the Order are governed by the law of England and Wales, and the courts of England have exclusive jurisdiction. No rights are conferred on third parties under the Contracts (Rights of Third Parties) Act 1999. The Order and its conditions constitute the entire agreement between the parties.

Acknowledgement

We confirm that our bid has been prepared on the basis of the above terms, and we consent to Jewel Bespoke Build Ltd storing the information provided with our submission.

Company

Name and position

Signature

Date